

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 16, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are succinctly as follows: "the respondent is responsible for a video surveillance camera installed on the façade of their home which, due to its location and orientation, is capable of capturing images of the public road and especially the access door to my business that runs alongside the house, without being properly signposted with the required informative signs indicating that it is a monitored area that informs passersby that it is a monitored area."

Images of the location of the camera on the exterior of the building are provided (Annex I photographs 1-2).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent on November 23, 2022, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), has not been received by the respondent at the address associated with the administrative file. On December 15, 2022, this Agency reiterated the forwarding of the facts, noting it as by the Official Postal and Telegraph Service, although no response has been made regarding the legality of the proposed system.

THIRD: On February 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FOURTH: On June 7, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

After two attempts to notify the respondent at their address, the Agreement to Initiate the procedure was published in the B.O.E (date July 13, 2023) indicating the number PS/00157/2023.

FIFTH: On July 14, 2023, a request for cooperation was made to the State Security Forces and Corps so that they could go to the scene and verify the presence of the camera and carry out the necessary inquiries.

SIXTH: On September 25, 2023, a report (Record) from the Civil Guard (Castellón Command - Vinarós Company) was received confirming the presence of a dome-type camera on the façade of the building, attaching photographs of the same.

- It is noted that there are informative signs both on the façade of the building and at the entrance door.

SEVENTH: On October 2, 2023, a was issued proposing a sanction amounting to €300 for the infringement of Article 5.1 c) GDPR, for having a video surveillance camera on the exterior façade improperly oriented towards the public area near the installation site.

EIGHTH: On October 25, 2023, a written statement was received from the respondent indicating that the camera is broken in such a way that the "camera does not work."

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated November 16, 2022, through which the following is conveyed:

"the respondent is responsible for a video surveillance camera installed on the façade of their home which, due to its location and orientation, is capable of capturing images of the public road and especially the access door to my business that runs alongside the house, without being properly signposted with the required informative signs indicating that it is a monitored area that informs passersby that it is a monitored area."

Second. It is identified as the main responsible party Mr. B.B.B., with NIF ***NIF.1, who does not deny being responsible for the installation of the camera.

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Third. The presence of a dome-type camera installed on the façade of the property is evidenced, with a clear orientation towards public space, according to the assessment of the acting authority.

Fourth. No document has been provided that proves that the camera is not operational at the present time.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived.

II

In this case, the complaint dated 16/11/222 is examined, through which the following essential fact is reported: "presence of a camera on the exterior façade without the required informative sign" (folio No. 1).

Article 5.1 c) of the GDPR provides as follows: Personal data shall be: "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable

regulations.

The installation of such devices must include the required informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its residents, avoiding the infringement of the rights of third parties who may feel intimidated by them.

Cameras must be limited to the protection of the property owned in such a way that they do not affect the area of third parties who may feel intimidated by them, as this would affect their free transit area.

III

In accordance with the evidence available in the sanctioning procedure, it is considered that the party being complained against has an exterior camera that is capturing images of adjacent public space, including the access area to the complainant's private business.

On 25/09/23, a report (Act) from the Civil Guard (Command of Castellón - Company of Vinarós) was received, confirming the presence of a dome-type camera on the façade of the property, attaching photographs of the same, with a clear orientation towards the public area, unjustifiably affecting the rights of third parties.

The party being complained against states that the camera is not operational without providing any documentation to prove this claim, and the statements made are insufficient to decree the archiving of the current procedure, as it is recalled that...

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inclusive, the fact that it is not operational creates a sense of infringement on the rights of third parties who feel intimidated by it under the belief that their personal data is being processed, insisting that it has not been documented that the camera is not operational.

Anyone who installs such devices must take the necessary precautions to ensure that they do not invade the space of third parties, whether operational or not, and in this case, the claimant should not bear the permanent uncertainty about whether the camera directed towards their space is operational or not (see e.g., STS Civil Chamber, section 1, of November 7, 2019, No. 600/2019, rec. 5187/2017). This body must also verify what has been stated by the claimant, which has not occurred in this case as the statements are considered insufficient.

Article 77, section 5 of Law 39/2015 (October 1) provides:

“5. The documents formalized by officials recognized as authorities, in which the corresponding legal requirements are observed, will serve as proof of the facts established by them unless proven otherwise.”

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they will prescribe after three years” and particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts constitute an infringement attributable to the respondent party for violating the content

of Article 5.1 c) of the GDPR, previously mentioned.

IV

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)."

In motivating the sanction, the poor orientation of the camera installed on the exterior facade is taken into account, which suggests an infringement of third-party rights that could even disproportionately affect their privacy, considering the conduct as grossly negligent, which justifies a sanction of €300, situated at the lower end of the scale for such conduct.

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The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could lead to the opening of a further sanctioning administrative procedure.

The respondent party must prove the legality of the system by providing a screenshot (date and time) evidencing what is captured by it, as well as the reason for its installation on the facade of the property, without prejudice to having to document that it is not operational.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €300.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within a period of ONE MONTH, prove compliance with the following measure:

- Removal and/or reorientation of the camera towards the exclusive area of their property, providing a screenshot of what is captured by it (with date and time) or documentary evidence that it is not operational.

THIRD: TO NOTIFY this resolution to B.B.B.

FOURTH: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the number of

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procedure outlined in the heading of this document, in the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, it will proceed to collection in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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